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Case Number: 24TRCV00267 Hearing Date: September 9, 2026 Dept: P

Motion to Tax Costs

Moving Party: Plaintiff Cristal S Ramirez

Responding Party: Defendant American Honda Motor Company, Inc.

RULING

The court considered the moving papers and opposition. Plaintiff's Motion to Tax Costs is GRANTED in part and DENIED in part. The court grants Plaintiff's Motion to Tax the memorandum of costs by \$13,216.61.

PROCEDURAL BACKGROUND

On January 26, 2024, Plaintiff Cristal S Ramirez ("Plaintiff") filed a complaint against Defendant American Honda Motor Company, Inc. ("Honda") and DOES 1 through 10, inclusive, alleging four causes of action for: (1) Violation of Civil Code Section 1793.2(d); (2) Violation of Civil Code Section 1793.2(b); (3) Violation of Civil Code Section 1793.2(a)(3); and (4) Breach of the Implied Warranty of Merchantability.

On April 6, 2026, the court ordered judgment to be entered in favor of Honda and against Plaintiff.

On April 20, 2026, Honda filed a memorandum of costs.

On May 11, 2026, Plaintiff filed the instant motion. On August 26, 2026, Honda filed an opposition.

FACTUAL BACKGROUND

Plaintiff alleges that on May 25, 2023, Plaintiff entered into a warranty contract with Honda regarding a 2023 Honda CR-V (the "Subject Vehicle"). (Complaint, ¶ 6.) Plaintiff alleges that defects and nonconformities to warranty manifested within the applicable warranty period. (Complaint, ¶ 11.) Plaintiff alleges that Honda has been unable to repair the Subject Vehicle to conform to the applicable express warranties after a reasonable number of opportunities. (Complaint, ¶ 26)

LEGAL STANDARD

“Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding. This means that the prevailing party is entitled to all of his costs unless another statute provides otherwise. Absent such statutory authority, the court has no discretion to deny costs to the prevailing party.” (Nelson v. Anderson (1999) 72 Cal.App.4th 111, 128-129 (citations and internal quotations omitted); see also Code of Civ. Proc. Section 1032(b).)

Allowable costs under Code of Civil Procedure Section 1033.5 must be reasonably necessary to the conduct of the litigation, rather than merely convenient or beneficial to its preparation, and must be reasonable in amount. An item not specifically allowable under Section 1033.5(a) nor prohibited under subdivision (b) may nevertheless be recoverable in the discretion of the court if they meet the above requirements (i.e., reasonably necessary and reasonable in amount). If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary. (*Ladas v. California State Automotive Assoc.* (1993) 19 Cal.App.4th 761, 773-774.) Whereas, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs. (*Ibid.*) Whether a cost item was reasonably necessary to the litigation presents a question of fact for the trial court and its decision is reviewed for abuse of discretion. (*Ibid.*) However, because the right to costs is governed strictly by statute, a court has no discretion to award costs not statutorily authorized. (*Ibid.*)

DISCUSSION

Moving Party's Argument

Plaintiff argues that Honda's memorandum of costs should be stricken in full because Honda has not provided invoices or billing records. Plaintiff first seeks to tax Honda's claimed \$949.85 in filing fees and Honda's claimed \$11,666.00 in deposition costs because Honda has not provided supporting invoices. Plaintiff objects to Honda's claimed witness and expert costs because Honda has not provided a court order authorizing the recovery of the expert's fees and Honda has not provided documentation regarding the ordinary witness fee. Plaintiff moves to strike Honda's claimed \$9,602.13 in costs pertaining to exhibits because Honda has not provided supporting invoices and thus the court cannot determine what materials were prepared and used at trial. Finally, Plaintiff argues that Honda's claimed "other" costs are unsupported by invoices or receipts, delivery and pickup charges for trial boxes are not allowable pursuant to Code of Civil Procedure Section 1033.5, and Honda's "duplication" entries are vague and unsupported.

Opposing Party's Argument

Honda argues that Plaintiff's motion is an improper request for invoices, as Plaintiff has failed to show that any of Honda's claimed costs were unreasonable or unnecessary. Honda argues that it was not obligated to include supporting invoices or receipts with its memorandum of costs, and Plaintiff has failed to meet her burden of identifying specific costs as unreasonable and unnecessary by providing a supporting declaration. Next, Honda argues that its requested costs are either expressly allowable pursuant to Section 1033.5 or may be allowed in the court's discretion, as Honda's claimed costs were reasonably necessary to the litigation and reasonable in amount. Honda argues that it is entitled to recover filing and motion fees and deposition costs as a matter of right. Next, Honda argues that its claimed witness fees were reasonably necessary to the litigation because the witnesses allowed the court to weigh all of the evidence, and Honda's witness was required to travel more than 800 miles to testify. Honda argues that it incurred \$8,331.64 in court reporter fees, although the memorandum of costs only accounts for one day of court reporting and Honda incorrectly claimed \$3,000.00 there. Honda argues that its "other" costs were reasonably incurred and related to the litigation because Plaintiff's failure to adequately prosecute her case caused Honda to prepare and pay for the trial binders. Honda states that the correct total cost for models, enlargements, and photocopies of exhibits is \$6,174.28. Finally, Honda argues that Honda's expert's services were incurred after Honda's Section 998 offer was rejected by Plaintiff, and the court has discretion to award Honda's expert fees.

Merits of the Motion

A. Filing Fees

First, Plaintiff seeks to tax Honda's memorandum of costs by \$949.85 in filing and motion fees because Honda has not provided the underlying invoices.

Code of Civil Procedure Section 1033.5(a)(1) provides that filing fees are allowable as costs under Section 1032. (Code Civ. Proc. Section 1033.5(a)(1).)

The court has reviewed Honda's memorandum of costs and finds that Honda has provided itemized fees for each filing, and the court notes that filing fees are expressly recoverable under Code of Civil Procedure Section 1033.5. The court finds that each item appears proper on its face. A verified memorandum of costs is prima facie evidence that the costs were necessarily incurred, and the burden rests with the plaintiff to show otherwise. (Jones v. Dumrichob (1998) 63 Cal.App.4th 1258, 1266.) Documentation is required only once a motion to tax places the costs in issue by providing contrary evidence. (Jones, supra, 63 Cal.App.4th at 1267.)

Here, Honda has provided invoices for the challenged filing fees. (Bakaly Decl., Exh. A, pp. 1-12.) Further, Plaintiff has not submitted any evidence showing that any of Honda's claimed filing fees were unreasonable or unnecessary.

Therefore, the court declines to strike Honda's claimed \$949.85 in filing and motion fees.

B. Deposition Costs

Next, Plaintiff seeks to strike Honda's claimed \$11,666.00 in deposition costs because Honda has not provided supporting documentation.

Code of Civil Procedure Section 1033.5(a)(3)(A) provides that allowable costs under Section 1032 include "[t]aking, video recording, and transcribing necessary depositions, including an original and one copy of those taken by the claimant and one copy of depositions taken by the party against whom costs are allowed."

The court refers to its previous discussion and notes that Honda has provided invoices for its claimed deposition costs. (Bakaly Decl., Exh. A, pp. 13-19.) The court finds that each challenged deposition cost appears proper on its face and notes that Plaintiff has provided no evidence and no argument showing that the costs were unreasonable or unnecessary. Further, the court points to the language of Section 1033.5(a)(3)(A) which expressly provides that allowable costs include video recording necessary depositions, in response to Plaintiff's argument that videotaping costs are "independently non-recoverable." (Mot. 4:16.)

Therefore, as Plaintiff has not met her burden, the court declines to strike Honda's claimed \$11,666.00 in deposition costs.

C. Witness and Expert Fees

Plaintiff additionally objects to Honda's claimed \$2,516.84 in witness fees which includes \$200.00 in ordinary witness fees and \$2,316.84 in expert fees. Plaintiff argues that expert fees are not recoverable and argues that Honda has not provided adequate support for its request for witness fees.

Honda argues that it properly seeks \$200.00 for the attendance and testimony of ordinary witness Arin Partida, which was reasonably necessary to the litigation in order to allow the court to weigh all of the evidence. (Opp. 7:6-8.) Honda argues that the \$200.00 is reasonable because Ms. Partida was required to travel more than 800 miles in order to testify at trial, and Honda has provided invoices in support of its claimed ordinary witness fees. (Bakaly Decl., Exh. A, p. 20.)

The court finds that Plaintiff has not met her burden of showing that the \$200.00 claimed by Honda for ordinary witness fees was not reasonable or necessary, and thus the court declines to strike these fees.

Regarding Honda's claimed expert witness fees, Code of Civil Procedure Section 998(c)(1) provides: "If an offer made by a defendant is not accepted and the plaintiff fails to obtain a more favorable judgment or award, the plaintiff shall not recover their postoffer costs and shall pay the defendant's costs from the time of offer. In addition, in any action or proceeding other than an eminent domain action, the court or arbitrator, in its discretion, may require the plaintiff to pay a reasonable sum to cover postoffer costs of the services of expert witnesses, who are not regular employees of any party, actually incurred and reasonably necessary in either, or both, preparation for trial or arbitration, or during trial or arbitration, of the case by the defendant."

Here, Honda's counsel declares that on July 17, 2024, former counsel for Honda served on Plaintiff a Code of Civil Procedure Section 998 offer and Plaintiff did not accept the offer. (Bakaly Decl., ¶ 3.) Therefore, the court has discretion to order Plaintiff to pay reasonable expert fees to Honda. The court notes that Honda has provided the invoices associated with Honda's expert fees and finds that Plaintiff has failed to show that Honda's claimed expert fees are unreasonable or excessive. (Bakaly Decl., Exh. A, pp. 21-22.)

Therefore, the court declines to strike Honda's claimed \$2,316.84 in expert fees.

D. Models, Enlargements, and Photocopies of Exhibits

Next, Plaintiff challenges Honda's claimed \$9,602.13 for costs for models, enlargements, and photocopies of exhibits because Honda has not provided supporting documentation.

The cost of models, enlargements, photocopies, electronic presentations, and other similar costs are allowable if they were reasonably helpful to aid a trier of fact. (Code Civ. Proc. Section 1033.5(a)(13).) These costs are not recoverable if the materials were not presented to the trier of fact. (Segal v. ASICS America Corp. (2022) 12 Cal.5th 651, 665.) However, the court has discretion under Code of Civil Procedure Section 1033.5(c)(4) to allow the costs if they were reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation. (Id.)

Honda's counsel declares that "[u]nder line item 13 ("Models, Enlargement, and Photocopies of Exhibits"), [counsel] inadvertently included an invoice pertaining to court reporter fees. The correct invoice for "Trial Exhibit Binders" totals \$367.95. The correct and total amount under line item 13 is \$6,174.28." (Bakaly Decl., ¶ 7.) Honda argues that its exhibit-related costs were primarily for exhibit binders which were necessary in order to facilitate trial. The invoices associated with Honda's exhibit-related costs are attached to Honda's counsel's declaration. (Bakaly Decl., Exh. A, pp. 23-26.)

The court finds that Honda has not established that the exhibit binders were presented to the trier of fact, and notes that Attachment 13 to Honda's memorandum of costs includes \$2,002.90 for transcript copies and transcript fees. The court finds that transcript fees are not properly requested as models, enlargements, or photocopies of exhibits. Additionally, Code of Civil Procedure Section 1033.5 expressly states that fees for "transcripts in court proceedings not ordered by the court" are not recoverable, and Honda has not stated that the court ordered a transcript.

Therefore, the court reduces Honda's memorandum of costs by \$9,602.13.

E. Other Costs

Finally, Plaintiff challenges Honda's claimed \$3,614.48 in "other" costs including duplication charges, delivery of trial boxes, pickup of trial boxes, and court reporter fees and transcripts on the grounds that none of these items is supported by invoices or receipts. Plaintiff further argues that delivery and pickup charges are not recoverable.

"Transcripts of court proceedings not ordered by the court" are expressly not allowable as costs under section 1033.5. Here, Attachment 15 to Honda's memorandum of costs includes a request for \$3,000.00 for court reporter fees and transcripts. While the court finds that a court reporter's presence is reasonably necessary to the litigation, the court finds that Honda has not shown that the transcripts were ordered by the court. Honda's counsel declares that he mistakenly miscalculated the cost of court reporting fees for three days of trial, with the correct total amounting to \$8,331.64. (Bakaly Decl., ¶ 6.)

Regarding Honda's claimed costs for "duplications" and delivering and picking up the trial boxes, the court finds that Honda has not sufficiently shown that these costs were reasonably necessary to the litigation.

Accordingly, the court reduces Honda's memorandum of costs by \$3,614.48.

CONCLUSION

Based on the foregoing, Plaintiff's Motion to Tax Costs is GRANTED in part and DENIED in part. The court grants Plaintiff's Motion to Tax the memorandum of costs by \$13,216.61.

Moving party is ordered to give notice of ruling.